

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
NAIM ILO

Plaintiff,

Index No:

Date Filed:

-against-

Summons

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, OFFICER FILASTIN SROUR
(SHIELD NO. 023392), LT. PAUL ZANGRILLI,
and OFFICER JANE DOE (UNDERCOVER #42350)

Plaintiff designates Kings
County as the place of trial

The basis of venue is
Plaintiff's residence.

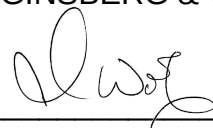
Defendants.
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To the above named Defendants:

You Are Hereby Summoned to answer the complaint in this action and to
serve a copy of your answer on Plaintiff(s) Attorney within twenty (20) days after service
of this Summons and Complaint, thirty (30) days, if not personally delivered to you
within New York State. Failure to answer will result in a default judgment being taken
against you for the amount demanded in the complaint.

Dated: New York, New York
January 28, 2014

GINSBURG & WOLF, P.C.

By: 

Martin Wolf, Esq.
Attorneys for Plaintiff
225 Broadway, Suite 3105
New York, New York 10007
(212) 608-1660

Basis of Venue: Plaintiff's Residence
2248 East 12th Street
Brooklyn, New 11229

Defendant's Address:

CORPORATION COUNSEL CITY OF NEW YORK

Attorney for the City of New York

100 Church Street, 4th Floor

New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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NAIM ILO

Plaintiff,

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THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, OFFICER FILASTIN SROUR
(SHIELD NO. 023392), LT. PAUL ZANGRILLI,
and OFFICER JANE DOE (UNDERCOVER #42350)

Defendants.
-----X

**Verified
Complaint**

Plaintiffs, by and through his attorneys, Ginsberg & Wolf, P.C.,
complaining of the defendant herein, upon information and belief, allege as
follows:

1. At all times hereinafter mentioned the defendant the City of New York
was a municipal corporation.

2. A Notice of Claim was duly served upon the Defendant City of New
York on or about August 18, 2014.

3. A Petition has been filed under index no. 12981/14 with the Kings
County Supreme Court requesting an extension of time to file notice of claim on
the false arrest, false imprisonment, battery and assault part of this claim. The
petition is pending as of the date herein.

4. More than thirty days has elapsed since the presentation of the
aforesaid Notice of Claim and the Defendant City of New York has failed to make
an offer of settlement.

5. A statutory 50-H hearing was held on November 10, 2014.

6. At all relevant times, defendant City of New York (hereinafter "City") was and is a municipal corporation.

7. At all relevant times, the Police Department is an agency of defendant City, with its principal place of business at One Police Plaza, New York, New York.

8. At all relevant times, defendant Officer FILASTIN SROUR (hereinafter SROUR) was a New York City Police Officer employed by the Defendant City of New York and acting within the scope of his employment.

9. At all relevant times, defendant LT. PAUL ZANGRILLI (hereinafter ZANGRILLI) was a New York City Police Officer employed by the Defendant City of New York and acting within the scope of his employment.

10. At all relevant times, defendant Officer OFFICER JANE DOE (UNDERCOVER #42350) (hereinafter "DOE") was a New York City Police Officer employed by the Defendant City of New York and acting within the scope of his employment.

11. On or about November 12, 2013, at approximately 4:55 pm, at 335 Fordham Road, Bronx, New York, in the County of Bronx, City and State of New York, Plaintiff was falsely arrested by the defendants, police officers SROUR, ZANGRILLI and DOE, and other unidentified members and employees of the defendant City of New York.

AS AND FOR A FIRST CAUSE OF ACTION
FALSE ARREST & FALSE IMPRISONEMENT

12. Plaintiff repeats, reiterates and realleges each and every allegation set forth in the paragraphs above, as if set forth at length herein.

13. On November 12, 2013, at approximately 4:55 pm , the Plaintiff was arrested by the Defendants.

14. The arrest was caused by the defendants, their agents, servants, and/or employees without any warrant and legal process and without authority of the law and without any reasonable grounds or cause to believe that Plaintiff was guilty of such crimes, or that the defendants had just cause to arrest the Plaintiff.

15. The Plaintiff was wholly innocent of any crime and did not contribute in any way or manner to his arrest by the defendants, their agents, servants, and/or employees, and was forced to submit to the arrest, imprisonment and confinement completely against his will.

16. The defendants, their agents, servants, and/or employees, as set forth above, intended to arrest and confine the Plaintiff in that the Plaintiff was conscious of the arrest and confinement; the plaintiff did not consent to the arrest; and the arrest was not otherwise privileged.

17. By reason of the false arrest and detention of the Plaintiff, he was subjected to great indignity, humiliation, pain and great distress of mind and body and has otherwise been damaged.

18. The amount of damages sought in this action exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION
FOR PSYCHOLOGICAL INJURIES AND DAMAGE TO REPUTATION

19. Plaintiff repeats, reiterates and realleges each and every allegation set forth in the paragraphs above, as if set forth at length herein.

20. Plaintiff was arrested on November 12, 2013 at his place of business, placed in handcuffs thereat and thereafter maliciously prosecuted.

21. As a result of the foregoing Plaintiff sustained severe psychological injuries.

22. As a result of the foregoing plaintiff sustained a severe stain on his reputation – which will prevent him from operating his business, obtaining employment and other benefits in life.

23. The damages for all of the aforesaid exceed the jurisdiction of any of the lower courts having jurisdiction herein.

AS AND FOR A THIRD CAUSE OF ACTION
FOR NEGLIGENCE

24. Plaintiff repeats, reiterates and realleges each and every allegation set forth in the paragraphs above, as if set forth at length herein.

25. The Defendant City was negligent, careless and reckless in hiring, retaining, supervising and promoting the officers. The officers, as employees of the City, were not qualified to be hired, retained, or promoted as police officers, and lacked the experience, skill, training and ability to be employed and retained by the City.

26. The City has failed to exercise due care and caution in its hiring, retaining, and/or promoting practices, in that the City failed to adequately screen

and test officers, failed to adequately monitor officers, failed to properly train and retrain officers, and were otherwise negligent, careless and reckless.

27. The false arrest and imprisonment, and resulting injuries to the Plaintiff that were caused whole and solely by reason of the negligence or deliberate indifference of the City, its agents, servants, and/or employees, without any negligence on the part of the Plaintiff contributing thereto.

28. As a result, plaintiff was damaged.

29. The amount of damages sought in this action exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION
FOR MALICIOUS PROSECUTION

30. The Defendants maliciously prosecuted the Plaintiff by preferring criminal charges against the Plaintiff without probable cause or reasonable suspicion that the Plaintiff was engaged in any kind of wrongful or criminal conduct.

31. Plaintiff was prosecuted during the period of November 12, 2013 through May 20, 2014 which prosecution resulted in among other things several court appearances, legal fees and other damages.

32. The conduct of Defendants violated the Plaintiff's rights under the Fourth Amendment to the United States Constitution.

33. The Plaintiff suffered injuries and damages as a consequence of the wrongful conduct of the Defendants, individually and/or collectively.

AS AND FOR A FIFTH CAUSE OF ACTION
FOR MALICIOUS ABUSE OF PROCESS

34. The Defendants subjected the Plaintiff to malicious abuse of criminal process when, because of an improper law enforcement motive and a personal bias, they caused the Plaintiff to be arrested, arraigned and subjected to continued prosecution until the Plaintiff was acquitted in May 20, 2014.

35. Such conduct by the Defendants, individually and collectively, violated the Plaintiff's rights under the Fifth and Fourteenth Amendments to the United States Constitution and the Civil Rights Act of 1871, 42 U.S.C. Section 1983.

36. The Plaintiff suffered injuries and damages because of such conduct.

AS AND FOR A FIFTH CAUSE OF ACTION
FOR ASSAULT

37. Plaintiff repeats and realleges and incorporates by reference the allegations in the above paragraphs with the same force and effect as if herein set forth.

38. The Police Officers intentionally created in Plaintiff a reasonable apprehension of immediate physical harm by their conduct, to wit, placing handcuffs upon the Plaintiff, and otherwise attacking Plaintiff.

39. Any reasonable person would have become apprehensive in the face of the Police Officer's threatening conduct.

40. Defendants, the CITY, are liable under the doctrine of respondeat superior.

AS AND FOR A FIFTH CAUSE OF ACTION
FOR BATTERY

41. Plaintiff repeats and realleges and incorporates by reference the above allegations with the same force and effect as if herein set forth.

42. Without the consent of Plaintiff, the Police Officers intentionally, harmfully, and offensively touched Plaintiff by handcuffing him, shoving him, and otherwise attacking Plaintiff.

43. Defendant CITY is liable under the doctrine of respondeat superior.

AS AND FOR A SIXTH CAUSE OF ACTION
FOR DEPRIVATION OF CIVIL RIGHTS

44. Plaintiff repeats and realleges and incorporates by reference the above allegations with the same force and effect as if herein set forth.

45. The aforesaid constitutes a violation of plaintiff's civil rights under United States code §1983 et. seq.

AS AND FOR A SIXTH CAUSE OF ACTION
FOR PUNITIVE DAMAGES

46. Plaintiff repeats and realleges and incorporates by reference the above allegations with the same force and effect as if herein set forth.

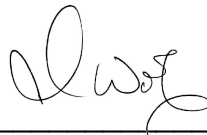
47. In addition, since the actions of the defendants were deliberate and intentional plaintiff is entitled to punitive damages.

WHEREFORE, plaintiff demands judgment against the defendants herein on the First through Sixth Causes of Action in a sum of money in excess of the monetary limit of any Court of inferior jurisdiction; together with the costs and disbursements of this action.

Dated: New York, New York
January 28, 2015

GINSBERG & WOLF, P.C.

By:

A handwritten signature in cursive script, appearing to read 'M. Wolf', written in black ink.

Martin Wolf, Esq.
Attorneys for Plaintiff
225 Broadway, Suite 3105
New York, New York 10007
(212) 608-1660

VERIFICATION

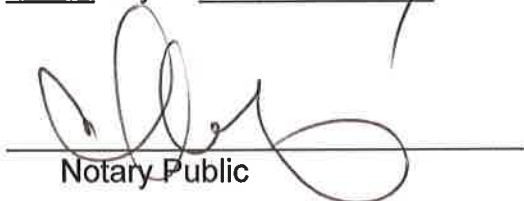
STATE OF NEW YORK)
) ss:
COUNTY OF *New York*)

NAIM ILO, being duly sworn, deposes and says:

I am the plaintiff in the within action, and have read the foregoing **VERIFIED COMPLAINT** and know the contents thereof; the same is true to my knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters, I believe them to be true.

naim ILO

NAIM ILO

Sworn to before me this
28 day of January 2015


Notary Public

